

## Galascope BESS — EPC Package

*Galascope 1 (5 MW / 20 MWh) & Galascope 2 (2.5 MW / 10 MWh) — Famagusta, Cyprus · Ref. LCY-EPC-GAL-B1-2026 (v6.5, August 2026)*

To: Galascope Ltd — Ntinios Konstantinos (Director), and advisers / board.

From: Lighthief Cyprus Ltd — Alexander Papacosta (Director).

### How this package works

- Signing this EPC Agreement places the order with the manufacturer immediately (the “Order Date”) — but signing itself does not trigger any Client payment. This replaces the earlier draft's staged approach: every companion document below (LTSA, OEM Direct Warranty Undertaking, both Advance Payment Guarantees, the OEM 5% Performance Guarantee, the EMS Subscription Addendum and the Technical Agreements for Galascope 1 and Galascope 2) is intended to be finalised and executed together with this EPC, and in any event no later than thirty (30) days after signing (the “Documents Long-Stop Date”) — not deferred until Connection Terms as in earlier drafts of this package.
- The two Advance Payment Guarantees (items 05a/05b) and the OEM 5% Performance Guarantee (item 06) are the expected exception to same-date signing: as bank- and OEM-issued instruments, they are necessarily issued shortly after the EPC Agreement itself is executed, once the underlying contract exists for the bank/OEM to reference.
- The advance payment itself still only becomes due later — thirty (30) days after the later of signing and receipt of Connection Terms from EAC/DSO, and only once the Client has accepted the companion-document bundle. So while the order is placed on signing, you are not asked to pay anything until Connection Terms are in hand and every companion document is in a form you have accepted.
- If any companion document is not agreed and executed by the Documents Long-Stop Date, either party may issue a written Deficiency Notice and, if the document is still not in place after a 30-Business-Day cure period, terminate this Agreement in respect of that specific document — without needing to unwind the whole package over one lagging signature.
- No advance is payable until the signed Direct Warranty Undertaking, the bank APG (with Galascope as beneficiary), the 5% performance guarantee and the Confirmed Price Certificate are presented and accepted. If any is not provided in the agreed form by the Documents Long-Stop Date, either party may terminate in respect of that document under the process above.

### Documents in this package

| #  | Document                   | Status            |
|----|----------------------------|-------------------|
| 01 | EPC Agreement v6.5         | For signature now |
| 02 | Ownership & Guarantee Flow | Explainer         |

|        |                                                                                                                                                                      |                                                                                                                              |
|--------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|
|        | (one-page explainer)                                                                                                                                                 |                                                                                                                              |
| 03     | LTSA (Long-Term Service Agreement) v4.7                                                                                                                              | For signature alongside the EPC                                                                                              |
| 04     | OEM Direct Warranty Undertaking — G1 & G2                                                                                                                            | For signature alongside the EPC (by the OEM)                                                                                 |
| 05a    | Advance Payment Guarantee No. 1 — equipment advance (EUR 705,792 = 25% of equipment supply, Galascope beneficiary)                                                   | Form for signature alongside the EPC (bank-issued)                                                                           |
| 05b    | Advance Payment Guarantee No. 2 — equipment pre-shipment (EUR 1,411,585 = 50% of equipment supply)                                                                   | Form for signature alongside the EPC (bank-issued)                                                                           |
| 05c    | APG No. 1 Bank Review Package (Stelios / Alpha Bank routing note + redline + clean form)                                                                             | For Stelios to route to Alpha Bank before sending to Linyang                                                                 |
| 06     | OEM 5% Performance Guarantee                                                                                                                                         | Form for signature alongside the EPC (by the OEM)                                                                            |
| 07     | EMS Subscription Addendum (DISPERON)                                                                                                                                 | For signature alongside the EPC — pending DISPERON company-registration details (see note)                                   |
| 08     | Redline Response Matrix v6.5 (Parts A–C: client comments vs. our response; Part D: Stelios SCC-call + Sybaris push-back)                                             | For review                                                                                                                   |
| 09     | O&M Plan — Galascope 1 & 2 (Rev.3)                                                                                                                                   | For information — working document, becomes controlled on signature                                                          |
| 10     | Schedule D — Lighthief International Performance Undertaking Letter (standalone)                                                                                     | For execution by Lighthief International Ltd — pending final Order Date, Client address, and ROC-confirmed registered office |
| Sch. A | Technical Specifications — Technical Agreements G1/G2, OEM/Kehua/Mingyang datasheets, SOH degradation curve, civil/foundation design and cable specification package | Reference                                                                                                                    |
| Sch. B | Certificates & Compliance — grid-code, CE, IEC and transport-safety certificates                                                                                     | Reference                                                                                                                    |

### Key protections built in for the Client

- The manufacturer's equipment supply is secured by two first-demand bank guarantees totalling EUR 2,117,377: APG No. 1 (EUR 705,792, 25% of the equipment supply value) issued before the advance, and APG No. 2 (EUR 1,411,585, 50% of the equipment supply value) issued at the Factory Acceptance Test before the pre-shipment payment. These secure the equipment refund from the manufacturer. They are deliberately not full cover for each milestone: your milestone payments (30% / 55% of the total contract price) also include EPC services, and that portion — together with any balance above the APG figures — is protected by the other layers below (FAT before payment, the 5% performance guarantee, the 5% retention, your possession and title of the equipment, and the 5-year DWU), not by the APGs.
- Both APGs name Galascope directly as beneficiary and are kept valid to PAC (or 12 months after delivery), so faults found at commissioning remain covered.
- The manufacturer's bank issues the APG(s) once it holds both this EPC and the supply contract, naming Galascope as beneficiary from the outset — so you can claim directly under the APG even though you pay Lighthief (not the manufacturer). It is original issuance in your name, not a transfer, which confirms the guarantee is valid for you and supports the payment terms.
- Title passes to you on the earlier of PAC or 12 months after delivery — so ownership never lags the end of the APG cover (with Lighthief retaining a security interest for any unpaid balance if title passes before PAC). The APGs expire at the same moment as the latest title-transfer branch (PAC or 12 months); once the APGs release, protection continues under the 5-year DWU warranty and the performance guarantee (valid to DLP end).
- A Factory Acceptance Test (FAT) lets you (or your inspector) witness factory testing and have defects fixed before the pre-shipment payment and before shipment, and the second guarantee is issued at that point — the primary protection against a large proportion of equipment being faulty.
- Your right to reject and require remedy runs to commissioning / PAC, not just 30 days after delivery.
- Price moves both ways — the Indicative Price is the current agreed price; the confirmed price tracks the lithium index and EUR/CNY measured only from the Effective Date (signing) forward: downward moves are passed to you; upward moves are capped at 5%; either side may walk away above the cap; orders more than six months out are re-quoted on the same two-way basis.
- Delivery timeline is set at the order trigger, not fixed today. Production lead time is indicative only and can change from any manufacturing estimate. When Connection Terms are received, the confirmed manufacturing lead time, the shipping timeline and the Target PAC date are set in the Delivery Schedule, and the Confirmed Price is fixed at the same time (it can move only within the two-way adjustment and the 5% upward cap). All delay liquidated damages are measured from that confirmed schedule. If the confirmed timeline is too long for you, you may withdraw with no liability — this protects you against unpredictable manufacturer lead times.
- Continuous cover: APGs to PAC (advance + pre-shipment) → CAR/erection insurance at full replacement value from port of discharge (the sea voyage is covered by the manufacturer's CIF marine) → 5% performance guarantee → 5% retention → 5-year OEM warranty & Direct Warranty Undertaking.
- The OEM's standard warranty caps aggregate liability at 10% of the payment received for defective products. The EPC and DWU draft include a requested manufacturing-defect carve-out under which the OEM bears full repair/replacement cost for confirmed manufacturing defects

(not subject to the 10% cap). The primary protection against a large proportion of equipment being faulty is FAT: defects are identified and remedied before the pre-shipment payment is made and before shipment, preventing payment for defective goods. The APGs, extended rejection window to PAC, and 5-year DWU provide continuous layered cover.

#### **Note — Kehua PCS and OEM scope**

The PCS is Kehua C-series (BCS1250K-C-HUD), supplied within Linyang's commercial scope as part of Linyang's integrated BESS offering. The Kehua PCS is an OEM-supplied product and is covered under the Linyang product warranty and Direct Warranty Undertaking.

#### **Note — grid-forming (VSG) & black start**

The PCS is hardware-capable of grid-forming (VSG) and black start; these are firmware-enabled. The current Technical Agreement lists them as excluded and they will be added by amendment after review. The hardware is identical, so we expect no change to the equipment price; whether activation is at the factory or by later update depends on the DSO grid-code requirement, which we are confirming. This is flagged for transparency and does not affect signing the EPC now.

#### **Note — governing law**

This EPC, the LTSA, EMS Addendum, and the Advance Payment Guarantee instruments are governed by Cyprus law. The OEM Direct Warranty Undertaking follows the manufacturer's standard warranty terms under PRC law, with disputes resolved at the Shanghai International Arbitration Center (SHIAC) in English — consistent with international BESS procurement practice. The Cyprus-law EPC and APGs provide the primary enforceable remedies. Lenders requiring a legal opinion on SHIAC enforceability are directed to the OEM DWU section 6.3.

#### **Note — DISPERON registration**

Disperon Sp. z o.o. (the EMS contracting entity) has disclosed its NIP (9492265995) but its KRS company-registration number and registered office address are still pending confirmation from DISPERON/Costas — see EMS Subscription Addendum (item 07) for the current placeholder fields.